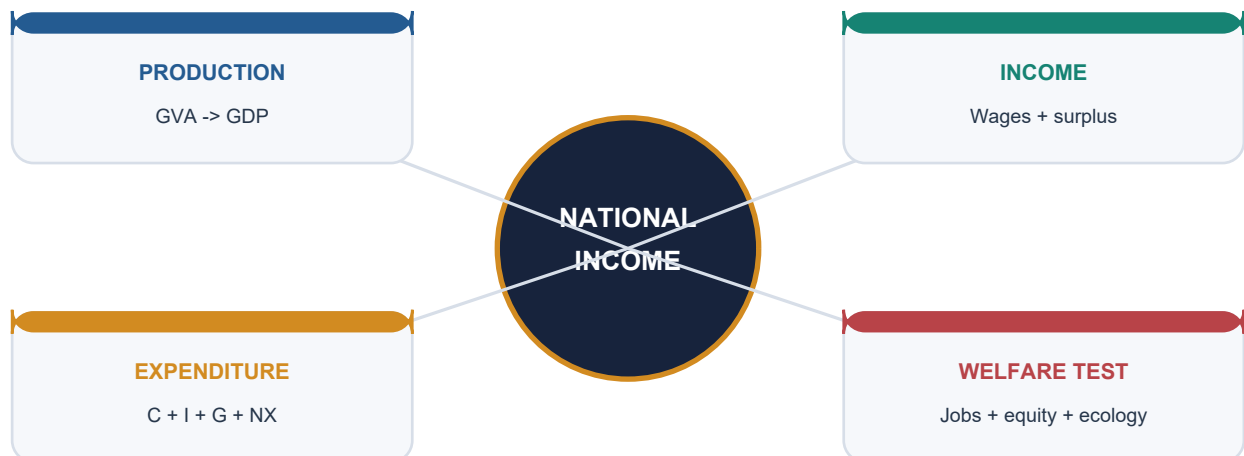


SOLVED PRACTICE WORKBOOK

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 27 - Election Commission - PYQ, practice and solved workbook

[FACT] This practice section begins at an H2 deliberately so that `markdown_learning_pdf.py --mode workbook` detects it. It contains every Election Commission demand directly routed in the local ledgers, two routed Prelims demands, 36 original MCQs, 12 remedials and eight original solved Mains questions.

[LIMIT] Exact wording is reproduced only from a readable locally held official paper or an exact quotation already preserved in the local owner. Where the ledger stores a neutral rendering, that status is explicit.

Verified routed Prelims PYQs

PYQ-P1 - UPSC Prelims 2021 GS-I Q80

Official-paper wording held locally

Consider the following statements:

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.
2. In 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.
3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of bye-elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. 1 and 3 D. 2 and 3

INFERRED KEY - NOT OFFICIALLY VERIFIED LOCALLY: B, statement 2 only. **Confidence: high.**

Explanation

- [FACT] RPA 1951 section 33(7) presently restricts a candidate to at most two constituencies in the same general election; statement 1's "three" proposition is false.
- [FACT] The locally routed historical fact records Devi Lal's 1991 three-constituency candidature; statement 2 is true.
- [FACT] The proposal that the candidate/party bear the bye-election cost has been discussed as reform, but it is not the present rule stated in statement 3.
- [LIMIT] Because the repository does not hold a readable official 2021 key, the key is inferential and is not represented as an official UPSC answer.

PYQ-P2 - UPSC Prelims 2024 GS-I Q71

Official Set A wording held locally

How many Delimitation Commissions have been constituted by the Government of India till December 2023?

A. One B. Two C. Three D. Four

Official local Set A key: D, Four.

Explanation

- [FACT] The four statutory exercises were under the Delimitation Commission Acts of 1952, 1962, 1972 and the Delimitation Act, 2002.
- [LIMIT] The fact does not make the ECI the sole delimiting authority. Under the 2002 Act, the CEC or nominated EC is an ex officio member of the statutory Delimitation Commission.

Prelims PYQ ownership control

Routed demand	Included	Ownership note
2021 multiple-constituency candidature	yes	ECI/electoral-reform interface
2024 number of Delimitation Commissions	yes	direct route, with delimitation boundary
presidential Electoral College/vote-value questions	no	President and Vice-President owner
Tenth Schedule political-party references	no	Anti-Defection owner
general political-party history matching	no	Post-Independence/Political Parties owner

Verified routed Mains PYQs with model solutions

PYQ-M1 - UPSC 2018 GS-II Q1

Official-paper wording held locally: “In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India?” (10 marks, 150 words)

Demand: identify challenges, not merely defend or attack EVMs.

Model solution

Thesis: [ANALYSIS] Trustworthy elections require confidence in the complete chain - roll, campaign, machine, custody, counting and remedy - rather than a binary claim about EVMs.

Machine and audit: [FACT] *Subramanian Swamy v. ECI* made VVPAT paper trail an integrity safeguard. [FACT] *ADR v. ECI* (2024) retained EVM-VVPAT, rejected universal paper counting, and ordered SLU preservation plus request-based checks of 5% burnt memories. [ANALYSIS] Verification must be visible enough to answer specific evidence, not general suspicion.

[FACT] The Supreme Court's 7 May 2025 follow-up accepted ECIL/BEL diagnostic checks and certification, with a candidate-requested mock poll possible after recorded data is displayed.

Wider challenges: [FACT] ECI must also address roll exclusion, money power through expenditure monitoring, criminal antecedent disclosure after *ADR/PUCL*, partisan field administration, misinformation and MCC enforcement. [ANALYSIS] A secure device cannot cure an unfair campaign field.

Qualification: [LIMIT] Unsupported fraud claims should not be amplified; equally, institutional confidence cannot rest on assertion alone.

Verdict: Publish aggregate audit outcomes, strengthen complaint reasons, preserve candidate-observation rights and connect machine security with roll and campaign integrity.

Outstanding-answer test: It expands "trustworthiness" beyond the device, names two judgments and ends with evidence-based reforms.

PYQ-M2 - UPSC 2019 GS-II Q11

Official-paper wording held locally: “On what grounds a people's representative can be disqualified under the Representation of Peoples Act, 1951? Also mention the remedies available to such person against his disqualification.” (15 marks, 250 words)

Demand: grounds plus remedies; do not turn it into an ECI-powers essay.

Model solution

Thesis: [FACT] Disqualification is a two-layer system: Articles 102/191 supply constitutional grounds, while the RPA 1951 specifies operational statutory grounds and remedies.

Grounds: [FACT] RPA sections 8-10A cover conviction for specified offences, corrupt practices, dismissal for corruption/disloyalty, government contracts, office under a government company and failure to lodge election-expense accounts. [FACT] *Lily Thomas v. Union of India* invalidated section 8(4)'s sitting-member protection, making

conviction-based disqualification immediate when the statutory threshold applies.

Constitutional decision route: [FACT] For a sitting MP/MLA question under Articles 103/192, the President/Governor obtains the ECI's opinion and acts according to it. [LIMIT] Defection belongs to the Speaker/Chairman under the Tenth Schedule.

Remedies: [FACT] An appellate stay of **conviction**, not merely sentence, can suspend the consequence; section 11 allows the ECI to remove or reduce specified disqualification; election-petition findings and High Court orders carry the RPA appeal route to the Supreme Court.

Qualification: [ANALYSIS] Speedy disposal is vital because delayed relief can consume the representative's term, but simplification cannot dilute proof where civic exclusion follows.

Verdict: Preserve strict grounds and due process while creating time-bound election benches and reasoned ECI opinions.

Outstanding-answer test: It classifies grounds, distinguishes defection, names *Lily Thomas* and states conviction-stay precisely.

PYQ-M3 - UPSC 2020 GS-II Q1

Official-paper wording held locally: "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of Peoples Act". Comment. (10 marks, 150 words)

Demand: measured comment on procedure, not automatic ECI disqualification.

Model solution

Position: [ANALYSIS] Simplification is justified because the present multi-stage process can outlast the elected term, but the evidentiary standard should not be weakened.

Present chain: [FACT] A corrupt practice under section 123 is proved in a High Court election petition; section 99 may name guilty persons; section 8A disqualification then follows through the President acting on the ECI's opinion. [ANALYSIS] Fragmented forums create delay and reduce deterrence.

Reform: Establish dedicated election benches, enforce the RPA's time expectation, digitise service and evidence, require reasoned timelines and coordinate the court-ECI-President stages.

Qualification: [LIMIT] Article 324 does not authorise the ECI to bypass the petition and adjudicate guilt on its own. A six-year civic consequence requires natural justice and strict proof.

Verdict: Simplify sequence and time, not proof or appellate protection.

Outstanding-answer test: It states the actual statutory chain and avoids the common "give ECI power to disqualify immediately" overreach.

PYQ-M4 - UPSC 2022 GS-II Q11

Official-paper wording held locally: "Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under the Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws." (15 marks, 250 words)

Demand: procedure, void grounds, remedy and case law.

Model solution

Constitutional frame: [FACT] Article 329(b) channels a challenge to a parliamentary or State-legislature election into an election petition. *N.P. Ponnuswami* explains why courts ordinarily do not interrupt the process mid-election.

Procedure: [FACT] Under sections 80 and 80A, only an election petition is used and the High Court tries it; section 81 prescribes filing within 45 days; section 83 requires material facts and full particulars of corrupt practice; parties, trial and orders follow the RPA framework.

Void grounds: [FACT] Section 100 includes lack of qualification/disqualification, corrupt practice by the returned candidate/election agent, improper rejection of nomination, and material effect from improper acceptance, corrupt practice by others, improper reception/refusal/rejection of votes or non-compliance with Constitution, Act, Rules or

orders.

Remedy: [FACT] The High Court may dismiss the petition, void the election or declare another candidate elected where legal conditions are met. Section 116A provides appeal to the Supreme Court.

Case law: [FACT] *Indira Nehru Gandhi v. Raj Narain* protects free and fair elections and judicial review; *Mohinder Singh Gill* distinguishes ECI administration from the post-result petition.

Verdict: The design avoids mid-poll fragmentation but needs time-bound adjudication so the remedy remains meaningful.

Outstanding-answer test: It answers all four limbs and keeps the ECI/court boundary clear.

PYQ-M5 - UPSC 2022 GS-II Q15 - direct routed demand

Exact official-paper wording held locally: "Discuss the role of the Election Commission of India in the light of the evolution of the Model Code of Conduct." (15 marks, 250 words)

Demand: link institutional role with evolution, legal status, enforcement and limits.

Model solution

Thesis: [FACT] The MCC is a consensus-based, non-statutory code through which the ECI converts Article 324's free-and-fair-election mandate into rapid campaign-time standards.

Evolution: [FACT] ECI material traces a code to the 1960 Kerala election; early national circulation and the 1968-69 mid-term election experience developed a minimum inter-party code. Successive ECI consultations added rules for meetings, processions, polling, manifestos and the party in power.

ECI role: [FACT] From schedule announcement to completion, the ECI receives complaints, obtains responses, censures or restrains campaigners, regulates official machinery and transfers, and refers independently illegal conduct for statutory action. [ANALYSIS] Its preventive speed protects the level playing field before harm becomes irreversible.

Legal overlap: [FACT] Bribery, undue influence, communal appeals and specified offences may attract the RPA 1951, BNS 2023 or other law even though the MCC itself is not a penal statute.

Limits: [LIMIT] Direct sanctions are limited; consistency and reason-giving are contested; criminal adjudication remains with ordinary institutions.

Verdict: Retain the MCC's flexible form but publish complaint timelines, reasoned outcomes and statutory-referral data to combine speed with accountability.

Outstanding-answer test: It avoids falsely calling the MCC law and gives a dated, qualified evolution.

PYQ-M6 - UPSC 2024 GS-II Q1

Exact wording preserved in the local owner: "Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation - one election' principle." (10 marks, 150 words)

Demand: committee-linked reform need, with ONOE as a special focus rather than the entire answer.

Model solution

Thesis: [ANALYSIS] India needs reforms in funding, criminalisation, roll integrity, ECI independence and dispute speed; simultaneous elections are one contested institutional proposal within that larger agenda.

Need: [FACT] Candidate disclosure cases, *Lily Thomas*, the electoral-bonds judgment and repeated ECI/Law Commission proposals identify transparency, decriminalisation and administrative-independence deficits.

ONOE case: [ANALYSIS] Supporters cite reduced repeated election expenditure, fewer recurring MCC interruptions and administrative continuity.

Costs: [FACT] Synchronisation would require constitutional and statutory change concerning House terms and mid-term dissolution. [ANALYSIS] It may nationalise State mandates, burden ECI logistics and weaken periodic accountability.

Qualification: [LIMIT] As of the control date, the proposal remains legislative business, not an implemented constitutional rule. This package cross-links its full status to Parliament/federalism owners.

Verdict: Implement consensus reforms now; test simultaneous elections against federal consent, constructive no-confidence or remainder-term design, ECI capacity and judicial safeguards.

Outstanding-answer test: It neither dismisses nor celebrates ONOE and protects the broader reform demand.

PYQ-M7 - UPSC 2025 GS-II Q1

Official-paper wording held locally: “Discuss the ‘corrupt practices’ for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute ‘undue influence’ and consequently a corrupt practice.” (10 marks, 150 words)

Demand: define corrupt practices, then analyse the specific undue-influence proposition.

Model solution

Definition: [FACT] Section 123 includes bribery, undue influence, specified identity/religious appeals, promotion of enmity, false statements about a candidate, prohibited transport, excess expenditure and obtaining prohibited assistance from government servants.

Undue influence: [FACT] Section 123(2) targets direct or indirect interference with the free exercise of an electoral right.

Asset question: [ANALYSIS] Disproportionate growth in a legislator's or associate's assets may indicate corruption, tax or disclosure concerns, but without an election nexus showing coercion or interference with voter freedom it does not automatically become section 123(2) undue influence.

Named evidence: [FACT] *ADR* and *PUC* protect the voter's right to candidate information. [ANALYSIS] The correct immediate response is full, verifiable disclosure and lawful investigation, not distortion of an electoral term.

Qualification: [LIMIT] A specific inducement funded by illicit assets could separately satisfy bribery or another corrupt practice if its elements are proved.

Verdict: Enforce disclosure and anti-corruption law rigorously while retaining strict element-based interpretation of corrupt practices.

Outstanding-answer test: It distinguishes unexplained enrichment from interference with the electoral right.

Mains PYQ coverage control

Year	Demand	Status
2018	EVM controversy and trustworthy elections	exact official wording + solution
2019	RPA disqualification grounds and remedies	exact official wording + solution
2020	simplify corrupt-practice disqualification	exact official wording + solution
2022 Q11	election disputes under RPA	exact official wording + solution
2022 Q15	ECI and MCC evolution	exact official wording + solution
2024	electoral reforms with ONOE	exact local-owner wording + solution
2025	corrupt practices and disproportionate assets	exact official wording + solution

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Article 324 field

Which election is within the ECI's Article 324 field?

- A. Election to the office of Vice-President B. Election to a municipal corporation C. Election to a Gram Panchayat D. Election to a cooperative society

Answer: A.

Explanation: [FACT] Article 324 expressly covers President and Vice-President; local bodies belong to SECs.

OM2. Local-body boundary

Superintendence of municipal elections is constitutionally vested in:

- A. Parliament B. the State Election Commission C. the Election Commission of India D. the State Public Service Commission

Answer: B.

Explanation: [FACT] Article 243ZA routes municipal elections to the SEC.

OM3. Article 325

Article 325 principally prohibits:

- A. all residence requirements for enrolment. B. every electoral disqualification. C. exclusion from or claim to a special roll only on religion, race, caste or sex. D. Parliament from making election law.

Answer: C.

Explanation: [FACT] One general roll coexists with citizenship, age and ordinary-residence rules.

OM4. Constitutional term

Which statement is correct?

- A. Article 324 fixes a six-year term. B. Article 324 fixes retirement at 65. C. The Constitution mandates exactly two ECs. D. Six years or age 65 is a statutory rule under the 2023 Act.

Answer: D.

Explanation: [FACT] The Constitution leaves service conditions/tenure to law; section 9 supplies the present rule.

OM5. Composition

The number of other Election Commissioners is:

- A. fixed from time to time by the President within the constitutional/statutory framework. B. permanently two under the Constitution. C. fixed by the Chief Justice of India. D. fixed by each State legislature.

Answer: A.

Explanation: [FACT] Article 324(2) and section 3 do not constitutionalise the present number two.

OM6. Regional Commissioner

A Regional Commissioner under Article 324:

- A. heads the State Election Commission. B. may be appointed by the President after consultation with the ECI to assist it. C. is elected by State legislatures. D. finally decides election petitions.

Answer: B.

Explanation: [FACT] The office is an assistance mechanism, not the local-body authority.

OM7. Anoop Baranwal

The most accurate statement is:

A. It permanently amended Article 324 to add the CJI. B. It struck down all appointments made before 2023. C. It created a CJI-inclusive interim committee until Parliament made a law. D. It prohibited Parliament from legislating on appointments.

Answer: C.

Explanation: [FACT] The operative direction expressly lasted till parliamentary law.

OM8. 2023 Act status

As on 19 August 2026, the safest statement is:

A. The Act has been struck down. B. The CJI has been restored by final judgment. C. The Act is stayed. D. The Act operates; no located official stay or merits verdict permits saying upheld or struck down.

Answer: D.

Explanation: [CURRENT] The 2024 stay applications were dismissed; no later official merits disposition was located.

OM9. Eligibility

Section 5 requires, among other things:

A. holding or having held Secretary-equivalent rank and election-management knowledge/experience. B. ten years as a High Court judge. C. prior service as a Returning Officer in three elections. D. a constitutional-law doctorate.

Answer: A.

Explanation: [FACT] These are the enacted statutory qualifications.

OM10. Search Committee

The enacted Search Committee is headed by:

A. the Cabinet Secretary. B. the Minister of Law and Justice. C. the Chief Election Commissioner. D. the Chief Justice of India.

Answer: B.

Explanation: [FACT] Section 6 controls; Bill-stage summaries must not replace it.

OM11. Outside-panel power

Under section 8, the Selection Committee:

A. can only accept the first-ranked panel name. B. must return the panel if the LoP dissents. C. may consider a person outside the Search Committee panel. D. must disclose its vote publicly before appointment.

Answer: C.

Explanation: [FACT] The outside-panel power is express, subject to transparent procedure.

OM12. Vacancy clause

An appointment recommendation is not invalid merely because:

A. the candidate lacks section 5 eligibility. B. the President did not issue a warrant. C. there was no Selection Committee recommendation. D. there is a vacancy in or defect in constitution of the Selection Committee.

Answer: D.

Explanation: [FACT] Section 7(2) is a saving clause, not a waiver of the whole Act.

OM13. Tenure aggregation

If an EC later becomes CEC:

A. combined EC and CEC service cannot exceed six years. B. a fresh six-year CEC term automatically begins. C. retirement age rises to 68. D. reappointment is permitted once.

Answer: A.

Explanation: [FACT] Section 9 caps aggregate service and bars reappointment.

OM14. Salary

The enacted 2023 Act equates salary with that of:

A. the Cabinet Secretary. B. a Judge of the Supreme Court. C. the Attorney-General. D. a Member of Parliament.

Answer: B.

Explanation: [FACT] Section 10 uses the Supreme Court judge comparator.

OM15. Removal

Which distinction is correct?

A. Every EC is removed by parliamentary impeachment. B. The CEC serves during presidential pleasure. C. The CEC has the SC-judge route; another EC requires the CEC's recommendation. D. Regional Commissioners have no removal protection.

Answer: C.

Explanation: [FACT] Article 324(5) creates removal asymmetry.

OM16. Collegial business

Where the three members differ:

A. the President decides. B. the CEC's view automatically prevails. C. the matter must remain undecided. D. the majority opinion decides.

Answer: D.

Explanation: [FACT] Section 18 and *T.N. Seshan* establish majority rule.

OM17. Section 16 protection

The most precise description is:

A. protection concerns official or purported-official acts, things or words by a present/former CEC or EC. B. absolute immunity extends to every private act. C. all ECI orders become immune from judicial review. D. only defamation claims are covered.

Answer: A.

Explanation: [FACT] The textual connection to official function must be preserved.

OM18. Election staff

Article 324(6) supports:

A. permanent transfer of every State officer to ECI. B. making staff available to the ECI when requested for election functions. C. ECI recruitment to all civil services. D. removal of Governors during elections.

Answer: B.

Explanation: [FACT] Field administration relies on staff made available by the Union/States.

OM19. Election schedule

Which is the correct distinction?

A. The MCC waits until polling begins. B. Returning Officers independently choose national dates. C. ECI announces the schedule, while statutory notifications form part of the legal election process. D. Courts announce the timetable.

Answer: C.

Explanation: [FACT] Administrative announcement and legal notification should not be collapsed.

OM20. Electoral roll integrity

The soundest principle is:

A. deletion accuracy alone defines integrity. B. inclusion alone defines integrity. C. aggregate numbers matter more than individual remedy. D. integrity combines eligible inclusion, lawful correction, notice and remedy.

Answer: D.

Explanation: [ANALYSIS] Both completeness and accuracy must operate through due process.

OM21. Article 325 and residence

Article 325:

A. does not eliminate lawful ordinary-residence and age conditions. B. permits religion-specific rolls. C. applies only to local elections. D. makes citizenship irrelevant.

Answer: A.

Explanation: [FACT] Anti-discrimination in roll structure coexists with statutory eligibility.

OM22. Delimitation

In the ordinary 2002 Act design, the ECI:

A. alone redraws all constituencies. B. participates through the CEC or nominated EC in the statutory Delimitation Commission. C. has no connection with delimitation. D. may disregard final delimitation orders.

Answer: B.

Explanation: [FACT] Membership/assistance is different from sole authority.

OM23. Party status

Which is correct?

A. Registration automatically creates national-party status. B. Every registered party receives a permanently reserved symbol. C. Registration under RPA section 29A and recognition under the Symbols Order are distinct. D. Recognition is decided by Parliament resolution.

Answer: C.

Explanation: [FACT] Recognition follows performance criteria under the Symbols Order.

OM24. Symbol disputes

Kanhiya Lal Omar is associated with:

A. presidential election disputes. B. NOTA. C. EVM microcontroller checks. D. validity of the Symbols Order and ECI symbol authority.

Answer: D.

Explanation: [FACT] It is the core symbol-order authority.

OM25. MCC origin

The safest evolution statement is:

A. a Kerala 1960 code evolved through later national consensus and ECI additions. B. Parliament enacted the MCC in 1960. C. the Supreme Court wrote the entire MCC in 1968. D. the MCC began only after EVMs.

Answer: A.

Explanation: [FACT] Evolution, not one-time enactment, is the correct frame.

OM26. MCC operation

The MCC ordinarily starts:

A. on filing of the first nomination. B. with announcement of the election schedule. C. at the start of polling. D. after results.

Answer: B.

Explanation: [FACT] ECI's official FAQ uses schedule announcement to completion.

OM27. MCC legal character

Which statement is correct?

A. Every MCC breach is automatically a criminal offence. B. The MCC has no enforceable consequence of any kind. C. The MCC is non-statutory, but overlapping conduct may violate penal/election law. D. Only the Supreme Court may enforce it.

Answer: C.

Explanation: [FACT] Code consequence and statutory prosecution are distinct layers.

OM28. MCC reform

The best calibrated reform is:

A. abolish all rapid directions. B. criminalise every campaign disagreement. C. make decisions secret to avoid controversy. D. preserve rapid directions while requiring timelines, reasons and statutory referral.

Answer: D.

Explanation: [ANALYSIS] The hybrid model protects both speed and accountability.

OM29. VVPAT

VVPAT primarily provides:

A. a voter-visible paper verification trail stored in a sealed box. B. a paper receipt for the voter to take home. C. online publication of each vote. D. automatic recount of every constituency.

Answer: A.

Explanation: [FACT] Voter secrecy and sealed custody are central.

OM30. 2024 EVM judgment

The Supreme Court in April 2024:

A. ordered return to paper ballots. B. retained EVM-VVPAT and added SLU/microcontroller safeguards. C. ordered 100% VVPAT counting. D. found systematic tampering.

Answer: B.

Explanation: [FACT] None of the three contrary propositions was the holding.

OM31. Microcontroller verification

The Court-directed check may be requested by:

A. any voter at any time. B. only the winning candidate. C. candidates placed second or third, within the prescribed seven-day period. D. only a High Court after an election petition.

Answer: C.

Explanation: [FACT] The request triggers checks of 5% of EVM sets in the relevant segment.

OM32. NOTA

Under the ordinary current rule:

A. NOTA is ignored and not counted. B. NOTA is a candidate. C. NOTA plurality automatically disqualifies all candidates. D. NOTA records secret rejection but does not automatically require a repoll.

Answer: D.

Explanation: [FACT] *PUC*L protects expression/secretcy, not a binding right to reject the result.

OM33. Article 324 doctrine

Mohinder Singh Gill supports:

A. residual/plenary ECI power where law is silent. B. ECI power to repeal statutes. C. permanent immunity from judicial review. D. ECI trial of election petitions.

Answer: A.

Explanation: [FACT] The reservoir is directed to free and fair election administration.

OM34. Statutory limit

A.C. Jose establishes that the ECI:

A. may ignore Conduct of Election Rules. B. supplements but cannot supplant an occupied statutory field. C. can create criminal offences by instruction. D. controls local-body elections.

Answer: B.

Explanation: [FACT] Express law prevails over contrary ECI innovation.

OM35. Election petition

The ordinary forum to try a parliamentary or Assembly election petition is:

A. the ECI. B. the District Election Officer. C. the High Court. D. Parliament's privileges committee.

Answer: C.

Explanation: [FACT] RPA 1951 section 80A supplies the High Court forum.

OM36. Independence evaluation

Which conclusion is strongest?

A. Removal protection alone guarantees independence. B. Appointment alone determines every outcome. C. More power always means more independence. D. appointment, tenure, finance, staff, collegiality and transparent enforcement interact.

Answer: D.

Explanation: [ANALYSIS] Institutional independence is systemic and multiplicative.

Remedial MCQs - strict continuation A -> B -> C -> D rotation

RM1. CEC chairmanship trap

Calling the CEC "Chairman" means:

A. institutional chairmanship, not a superior deciding vote. B. power to veto both ECs. C. power to remove ECs directly. D. exclusive power to allocate every symbol.

Answer: A.

Explanation: [FACT] Equality and majority rule survive chairmanship.

RM2. Removal asymmetry

Another EC can be removed:

A. only through the same parliamentary address as the CEC. B. only on the CEC's recommendation. C. at the Prime Minister's pleasure. D. by majority vote of the Commission.

Answer: B.

Explanation: [FACT] Article 324(5) uses the CEC-recommendation safeguard.

RM3. Search-selection distinction

Which statement is correct?

A. The Search Committee appoints the CEC. B. The President prepares the five-name panel. C. The Search Committee prepares a panel; the Selection Committee recommends. D. The Supreme Court confirms the appointment.

Answer: C.

Explanation: [FACT] Appointment itself is by presidential warrant.

RM4. Salary-charged trap

Which is safest?

A. Every ECI expense is constitutionally charged because salary equals an SC judge's. B. Article 322 directly covers ECI. C. Demand No. 66 proves permanent constitutional charging. D. Salary parity does not itself create blanket charged status; a reform proposal seeks fuller financial autonomy.

Answer: D.

Explanation: [FACT] The statute and budget must be read separately from reform demands.

RM5. Roll deletion

A possible database mismatch should first lead to:

A. verification, notice and a reasoned statutory process. B. automatic mass deletion. C. postponement of all elections. D. loss of citizenship.

Answer: A.

Explanation: [ANALYSIS] A data signal is not an adjudication.

RM6. Delimitation owner

The ordinary final map under the 2002 framework comes from:

A. the ECI acting alone. B. the statutory Delimitation Commission. C. the Finance Commission. D. the Inter-State Council.

Answer: B.

Explanation: [FACT] ECI participation must not be converted into sole ownership.

RM7. MCC-statutory overlap

An MCC complaint alleging bribery should be treated as:

A. only a moral issue. B. automatically proved criminal guilt. C. an MCC issue plus referral/investigation under applicable law where elements exist. D. an election petition before polling.

Answer: C.

Explanation: [FACT] Administrative prevention and penal proof are separate.

RM8. Article 324 gap

If a Rule expressly requires method X, the ECI:

A. may replace it with Y whenever administratively convenient. B. may disregard it during a close election. C. must seek the CJI's permission. D. must follow X unless lawfully changed; Article 324 cannot contradict it.

Answer: D.

Explanation: [FACT] A.C. Jose is the controlling correction.

RM9. Observer role

An election observer principally:

A. independently observes/reports and supports corrective supervision. B. replaces the High Court. C. recognises political parties. D. appoints the CEC.

Answer: A.

Explanation: [FACT] Observers close information gaps but do not absorb statutory offices.

RM10. NOTA remedy

If NOTA tops the tally under the ordinary present rule:

A. the Governor appoints a candidate. B. the highest-voted candidate remains returned; no automatic repoll follows merely from NOTA. C. the ECI permanently bans all candidates. D. the seat is abolished.

Answer: B.

Explanation: [FACT] NOTA is expressive, not a candidate or binding reject option.

RM11. Appointment status

Which answer respects the control date?

A. The Supreme Court has finally upheld section 7. B. The Act has ceased to operate. C. The official 2024 stay refusal stands, while no located official merits verdict permits a final-validity claim. D. *Anoop Baranwal* permanently bars parliamentary law.

Answer: C.

Explanation: [CURRENT] This formulation separates located orders from unresolved merits.

RM12. Best Mains method

An examiner-grade paragraph should normally use:

A. accusation -> slogan -> prediction. B. definition -> unrelated statistic -> conclusion. C. case name without holding -> reform wish. D. claim -> named evidence -> analysis -> qualification.

Answer: D.

Explanation: [ANALYSIS] This sequence makes legal control and evaluative reasoning visible.

Original solved Mains practice

M1. Article 324 is a reservoir of electoral power, not a source of power contrary to law. Explain. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 324 vests plenary superintendence, direction and control in the ECI; [ANALYSIS] its breadth enables gap-filling action needed for free and fair elections, not displacement of parliamentary law.

Power: [FACT] In *Mohinder Singh Gill v. CEC*, the Supreme Court described Article 324 as a reservoir of authority where enacted law is silent. This supports urgent repoll directions, administrative safeguards, the MCC and other integrity measures where no contrary rule occupies the field.

Limit: [FACT] *A.C. Jose v. Sivan Pillai* held that the ECI must supplement rather than supplant the Act and Rules. [ANALYSIS] Otherwise, an unelected administrator could rewrite the democratic rules Parliament was constitutionally authorised to enact under Article 327.

Procedural control: [FACT] Natural justice is context-sensitive; election urgency may alter timing, but reason, relevance and judicial review remain.

Qualification: [LIMIT] Plenary does not mean final power to void a returned candidate's election; that belongs to the election-petition court.

Verdict: Article 324 is strongest when used as a legally disciplined reserve: decisive in a vacuum, obedient in an occupied field.

Why this earns marks: It states both leading cases, supplies a functional example and ends with the supplement-not-supplant rule.

M2. Distinguish the constitutional position of the CEC from that of the other Election Commissioners. (10 marks, 150 words)

Model solution

Thesis: [FACT] The CEC is first among equals in institutional chairmanship but enjoys a distinct removal safeguard.

Equality: [FACT] Article 324 permits a multi-member Commission. Section 18 of the 2023 Act prefers unanimity and sends differences to majority. *T.N. Seshan* rejected CEC decisional supremacy. [ANALYSIS] Each member therefore has an equal vote in Commission business.

Distinct position: [FACT] The CEC acts as Chairman and is removable only like an SC judge. The CEC's service conditions cannot be varied to disadvantage after appointment.

Other ECs: [FACT] They have equal decisional power, the same statutory salary and term framework, but can be removed only on the CEC's recommendation rather than through the CEC's parliamentary route.

Qualification: [LIMIT] "Only on CEC recommendation" is protection against direct pleasure removal, yet it remains weaker and creates dependence on the Chair.

Verdict: Functional equality and security asymmetry coexist; reform should protect collegial dissent while preserving accountability.

Why this earns marks: It separates vote, chairmanship, service conditions and removal rather than saying simply "CEC is superior".

M3. Critically examine the appointment architecture created by the 2023 Act. (15 marks, 250 words)

Model solution

Thesis: [FACT] The 2023 Act validly occupies Parliament's express Article 324(2) law-making space; [ANALYSIS] its unresolved legitimacy issue is whether executive predominance provides sufficient institutional independence and deliberative transparency.

Architecture: [FACT] Section 5 uses Secretary-equivalent rank, integrity and election-management experience. Section 6 gives a Law-Minister-led Search Committee power to prepare five names. Section 7 creates the PM-LoP-PM-nominated Minister committee, with a vacancy/defect saving clause. Section 8 requires transparent procedure but allows selection outside the panel. The President appoints by warrant.

Strengths: A statutory process replaces the previous vacuum; eligibility and Opposition participation are express; procedure must be transparent; current appointment does not depend on an unregulated executive convention.

Concerns: [ANALYSIS] The executive holds two of three votes; the Search Committee is executive-led; outside-panel choice may weaken search discipline; the vacancy clause can reduce plural participation; the Act does not require public comparative reasons.

Named evidence: [FACT] *Anoop Baranwal* created a CJI-inclusive committee only till parliamentary law. The official 22 March 2024 order refused to rewrite section 7 at the interim stage but stressed full dossiers and fair deliberation.

Current control: [CURRENT] The Act operates; no official merits verdict or stay was located as of 19 August 2026.

Reform: publish criteria, ensure adequate dossier time, record comparative reasons, strengthen search independence and consider a committee whose majority is not controlled by the incumbent executive.

Verdict: Parliamentary competence is clear; constitutional adequacy must be judged by whether the process credibly insulates electoral administration from partisan dependence.

Why this earns marks: It evaluates the enacted sections rather than a Bill summary and accurately limits *Anoop Baranwal*.

M4. The Model Code of Conduct succeeds through speed but is weakened by opacity. Discuss. (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] The MCC is effective because a non-statutory code allows immediate preventive correction during a short campaign; its legitimacy weakens when similar complaints yield delayed or unexplained outcomes.

Evolution and authority: [FACT] Beginning with the Kerala 1960 experiment and broader 1968-69 consensus, the MCC evolved through party consultation and ECI instructions. It operates from schedule announcement to completion under Article 324 supervision.

Speed advantage: The ECI can stop misuse of official machinery, seek responses, censure speakers, order transfers and restrain announcements before electoral advantage becomes irreversible. [ANALYSIS] A criminal trial after polling cannot restore an already distorted campaign field.

Legal overlap: [FACT] Bribery, undue influence, communal appeals and other conduct may independently attract the RPA/BNS. [LIMIT] MCC censure is not a finding of criminal guilt.

Opacity problem: complaint status, evidence, member votes, precedent and reasons may not be consistently visible. [ANALYSIS] Selective appearance is itself an institutional cost because neutrality must be demonstrable.

Reform: publish a real-time complaint ledger; specify response/decision timelines; issue speaking orders; identify statutory referrals; audit cross-party consistency after each election.

Qualification: [LIMIT] Turning the whole code into criminal law could sacrifice preventive flexibility and invite delay.

Verdict: Retain non-statutory speed, but constitutionalise its credibility through transparent, proportionate and reviewable administration.

Why this earns marks: It explains the mechanism of speed, the statutory overlap and a hybrid reform rather than choosing a false statutory/non-statutory binary.

M5. Evaluate the ECI's role in maintaining accurate and inclusive electoral rolls. (15 marks, 250 words)

Model solution

Thesis: [FACT] Article 324 and the RPA 1950 make roll preparation and revision a core ECI responsibility; [ANALYSIS] accuracy is legitimate only when pursued with equal commitment to inclusion and due process.

Legal structure: Article 325 guarantees one general roll without specified identity discrimination. The RPA uses citizenship, age, ordinary residence and lawful disqualification. EROs process inclusion, correction and deletion under ECI supervision; the 2023 Roll Manual details claims, objections, notice, inquiry and appeals.

Inclusion role: continuous updating, four qualifying dates, online/physical access, field verification, accessible forms, SVEEP and targeted support for migrants, homeless persons, persons with disabilities and young electors.

Integrity role: duplicate/error checks, death and shifting information, reasoned correction, public draft/final publication and objection process.

Risk: [ANALYSIS] mass data matching can create false positives; short timelines and rigid documents can disproportionately exclude mobile and poor citizens. A database flag is evidence for inquiry, not a deletion order.

Current qualification: [LIMIT] State-specific revision rules and litigation are volatile; the exact ECI order must be cited before assessing legality.

Reform: individual notice, alternate proof, assisted filing, reasoned orders, rapid pre-poll appeals, privacy safeguards and independent aggregate audits.

Verdict: Roll purity is not the smallest roll; it is the most complete lawful roll produced by a reviewable process.

Why this earns marks: It balances inclusion and cleansing, names the legal architecture and protects current-status discipline.

M6. How do party registration, recognition and symbol adjudication illustrate the ECI's quasi-judicial role? (15 marks, 250 words)

Model solution

Thesis: [FACT] The ECI regulates entry and electoral identity through different legal instruments; [ANALYSIS] its quasi-judicial character is clearest when facts, rival claims and legal criteria must be applied through reasoned decisions.

Registration: RPA 1951 section 29A governs registration. It brings an association into the statutory political-party framework but does not guarantee recognition.

Recognition: The Symbols Order, 1968 applies electoral-performance criteria to national and State recognition and reserves symbols accordingly.

Split disputes: The ECI evaluates organisational and legislative support, party constitution and election urgency; it may freeze a disputed symbol and give temporary symbols to avoid voter confusion.

Named evidence: [FACT] *Kanhiya Lal Omar v. R.K. Trivedi* upheld the Symbols Order and ECI authority in recognition and symbol matters.

Analysis: Symbols serve ballot accessibility and stable political identity. A neutral decision therefore protects both competing factions and electors.

Limits: [LIMIT] Registration is not recognition; symbol adjudication is not a general jurisdiction over property, ideology or every internal membership dispute. Civil courts and other legal forums retain their fields, and ECI decisions remain judicially reviewable.

Reform: publish criteria, procedural calendars, evidence summaries and reasoned interim/final orders; develop transparent rules for internal-democracy disclosures without claiming powers Parliament has not conferred.

Verdict: Quasi-judicial legitimacy rests on bounded jurisdiction, consistent precedent and visible reasons.

Why this earns marks: It separates three commonly collapsed functions and attaches a case plus jurisdictional limit.

M7. Design an institutional reform package to strengthen ECI independence without weakening accountability. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Independence and accountability are complements: insulation from partisan command must be paired with plural appointment, internal checks, reasoned action, financial visibility and judicial remedy.

1. Appointment: use a plural committee without an automatic incumbent-executive majority; an independent search body; published criteria; adequate dossiers; conflict declarations and comparative reasons.

2. Tenure/removal: consider equal removal protection for ECs, but add an independent misconduct-inquiry stage so security does not become impunity.

3. Secretariat: [FACT] *Anoop Baranwal* appealed for a permanent independent secretariat. Create a statutory cadre/appointment framework with transparent deputation and transfer rules.

4. Finance: provide a separately presented ECI budget and consider charged expenditure through constitutional/statutory change; retain audit by the CAG and parliamentary outcome scrutiny.

5. Collegiality: publish business-allocation regulations, recusals and, where legally possible, majority/minority reasons in important matters.

6. Enforcement: public MCC complaint ledger, decision deadlines, speaking orders, statutory-offence referrals and consistency audits.

7. Rolls/technology: due-process roll controls, independent aggregate audits, secure custody records and accessible court-directed EVM checks.

8. Judicial interface: fast election benches and expedited review that does not derail live polling.

Qualification: [LIMIT] No reform should transfer election management to courts or Parliament, expose security-sensitive details, or make commissioners unanswerable.

Verdict: The test is institutional distance from the government of the day plus visible fidelity to law, evidence and equal treatment.

Why this earns marks: It treats the ECI as a full system and attaches an accountability control to every autonomy proposal.

M8. “Electoral trust is an ecosystem, not a machine question.” Critically analyse the statement with reference to the ECI. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] EVM integrity is essential, but electoral trust emerges from the combined credibility of the roll, campaign, personnel, voting technology, custody, count, disclosure and remedy.

Roll: [FACT] Article 325 and the RPA 1950 require an inclusive, accurate general roll. Unreasoned deletion can disenfranchise before a machine is used.

Campaign: MCC neutrality, expenditure monitoring, candidate disclosure and action against bribery or communal appeals determine whether choice is free.

Personnel: Article 324(6), observers and transfer controls address the risk of partisan field administration.

Machine and audit: [FACT] *Subramanian Swamy* introduced VVPAT. *ADR v. ECI* (2024) retained EVM-VVPAT while ordering SLU preservation and request-based 5% microcontroller verification. [ANALYSIS] These are layered assurance mechanisms, not proof of fraud.

Information: [FACT] *ADR/PUCL* candidate disclosure and the electoral-bonds judgment protect informed choice.

Remedy: Article 329 and RPA petitions balance uninterrupted polling with post-result judicial challenge; reasoned ECI complaints and technical verification supply earlier remedies.

Critical side: [LIMIT] Institutional assurance can become opaque, while unsupported allegations can corrode confidence. Both secrecy and speculation are poor substitutes for auditable evidence.

Reform: publish custody/audit aggregates, complaint outcomes and roll metrics; protect security and voter secrecy; provide rapid independent review.

Verdict: The ECI should answer distrust with evidence across the ecosystem, because a trustworthy machine inside an unfair process is not a trustworthy election.

Why this earns marks: It integrates all major subtopics, uses three case families and critically rejects both complacency and unsupported suspicion.